

Court No. - 32

Case :- WRIT - C No. - 13744 of 2020

Petitioner :- Ramesh Chand Gola

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ram Sanahi Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following relief:

"(I) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 and 3 not to harass the petitioner in any manner.

(II) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 to decide the representation of the petitioner dated 28.1.2020 within stipulated period as fixed by the Hon'ble Court"

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005. We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the respondent No. 2/appropriate authority along with a certified copy of this order enclosing therewith a copy of the writ petition and its annexures for redressal of his grievance within two weeks from today, his application shall be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a reasoned and speaking order after giving opportunity of hearing to the petitioner.

For a period of seven weeks, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 10.9.2020/vinay